

Mohammad Jafar Ali Khan v. Uttar Pradesh Power Corporation and others

High Court of Judicature at Allahabad · Division Bench · 7 January 2026 · Writ-C No. 44625 of 2025 · **Writ disposed; petitioner directed to file clause 6.5 objection; demand stayed three months.**

HEADNOTE

A writ challenging a demand notice of Rs. 10.67 lakh was disposed of by relegating the consumer to a clause 6.5 billing objection, with a two-month disposal timeline and a stay of the demand for three months or until disposal, whichever is earlier.

FACTUAL SUMMARY

Mohammad Jafar Ali Khan petitioned under Article 226 challenging a demand notice of Rs. 10,67,342.52 issued by the Junior Engineer/Sub-Divisional Officer, Electricity Urban Distribution Division-V, Varunapar Imiliyaghat, Varanasi. He contended the demand was wholly illegal because the circumstances of its issue were not clear. Counsel for Uttar Pradesh Power Corporation Ltd. treated it as a bill dispute and submitted that an objection would be disposed of under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer disputing a demand notice must raise the bill dispute by objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with a direction to file the objection within two weeks; if filed, the authority shall consider and dispose of it within two months. The demand shall not be pressed until that disposal or for three months, whichever is earlier.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging a demand notice of Rs. 10.67 lakh was disposed of by relegating the consumer to a clause 6.5 billing objection, with a two-month disposal timeline and a stay of the demand for three months or until disposal, whichever is earlier.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED —